

2. Meet-and-Confer Requirements

The Discovery Act requires parties to engage in a reasonable, good faith effort to resolve disputes informally before seeking court intervention. (§ 2016.040; see *Golf & Tennis Pro Shop, Inc. v. Superior Court (Frye)* (2022) 84 Cal.App.5th 127, 138.) Local Rules of the Contra Costa County Superior Court impose similar requirements and emphasize that discovery motions should be filed “sparingly” and only when disputes cannot otherwise be resolved. (Local Rules, rules 2.121(e), 2.122(c).) The record reflects that counsel satisfied these obligations prior to filing this motion.

3. Standards Governing Motions to Compel Further Responses

A party moving to compel further responses must show good cause supporting the discovery sought. (§ 2031.310, subd. (b)(1).) Once such a motion is filed, the burden shifts to the responding party to justify any objections. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

Where a party asserts an inability to comply, section 2031.230 requires a verified statement affirming that: (1) a diligent search and reasonable inquiry were made; (2) the documents never existed, were destroyed, lost, or are no longer within the party’s possession, custody, or control; and (3) the identity and address of any person or organization believed to have the requested items. A response lacking these representations is defective.

4. Adequacy of Defendants’ Responses

Based on the papers submitted, the Court finds that Defendants’ third amended responses substantially comply with section 2031.230. Defendants identified responsive documents by Bates number and affirmatively represented that they conducted a diligent search and no further responsive documents exist. While the statutory language is not repeated verbatim, the substance of the representation sufficiently conveys Defendants’ claimed inability to produce additional documents.

The Court is entitled to rely on counsel’s representations of compliance under penalty of perjury and penalty of sanctions should later evidence reveal otherwise. If Defendants intentionally misrepresented their compliance to avoid production or conceal documents, the Discovery Act and Rules of Professional Responsibility provide appropriate remedies, including monetary sanctions, contempt and referral to the State Bar.

On the present record, Plaintiff has not demonstrated that Defendants’ responses are incomplete or that additional responsive documents exist. The Court therefore concludes that Defendants’ responses to Requests Nos. 4 and 19 satisfy the requirements of the Civil Discovery Act.

RULING

Plaintiff Franklin Cherry’s Motion to Compel Further Responses to Request for Production of documents, Set One, Request Nos. 4 and 19, is **denied**. The parties’ competing requests for sanctions are **denied**. Each party shall bear their own attorney’s fees and costs incurred in connection with this motion. Defendant shall prepare and electronically file a proposed order consistent with this ruling within ten (10) days, attaching this tentative ruling as an exhibit.

13. 9:00 AM CASE NUMBER: MSC21-01691

CASE NAME: GCL NEW ENERGY, INC. VS TRINA SOLAR US INC.

***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**

FILED BY: GCL NEW ENERGY, INC.

TENTATIVE RULING:

The hearing on this motion is vacated. The Parties informed the Court that this matter has settled as of November 24, 2025. The Court sets a further Case Management Conference (CMC) for March 24, 2026 at 8:30 a.m. to follow-up on the dismissal. If a Request for Dismissal is filed before March 24, 2026, this date will vacate. If not dismissed, the Parties are ordered to appear to provide an update on the resolution of this case.

14. 9:00 AM CASE NUMBER: MSC21-01691

CASE NAME: GCL NEW ENERGY, INC. VS TRINA SOLAR US INC.

***HEARING ON MOTION IN RE: DISQUALIFY MICHAEL NELSON AS COUNSEL FOR DEFENDANT**

FILED BY: GCL NEW ENERGY, INC.

TENTATIVE RULING:

The hearing on this motion is vacated. The Parties informed the Court that this matter has settled as of November 24, 2025. The Court sets a further Case Management Conference (CMC) for March 24, 2026 at 8:30 a.m. to follow-up on the dismissal. If a Request for Dismissal is filed before March 24, 2026, this date will vacate. If not dismissed, the Parties are ordered to appear to provide an update on the resolution of this case.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C24-02119

CASE NAME: JOHN ROE J.H., AN INDIVIDUAL VS. PHILLIP WEBB

***HEARING ON MOTION FOR DISCOVERY COMPEL CALIFORNIA COMMISSION ON TEACHER CREDENTIALING TO PRODUCE RECORDS SUBPOENAED BY PLAINTIFF**

FILED BY: ROE J.H., AN INDIVIDUAL, JOHN

TENTATIVE RULING:

Summary

Plaintiff's Motion to Compel Non-Party California Commission on Teacher Credentialing ("CTC") to Produce Records Subpoenaed by Plaintiff is **moot** to the extent CTC has already produced responsive documents, and is otherwise **denied**

Background

On May 27, 2025, Plaintiff John Roe J.H. ("Plaintiff") filed a Motion to Compel Non-Party California Commission on Teacher Credentialing ("CTC") to Produce Records Subpoenaed by Plaintiff. The Motion was accompanied by the Declaration of Counsel Veronica Diaz (submitted via errata) and a Separate Statement. Plaintiff seeks an order compelling CTC to release complete, unredacted records related to Pittsburgh Unified School District's former employee, Defendant Phillip Webb ("Defendant" or "Webb"), pursuant to a records subpoena. Plaintiff contends the documents sought are relevant, reasonably calculated to lead to the discovery of admissible evidence, and that good cause exists for